Number 1 *of* 2014

LOCAL GOVERNMENT REFORM ACT 2014

REVISED

Updated to 26 August 2020

This Revised Act is an administrative consolidation of the *Local Government Reform Act 2014*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Civil Law and Criminal Law (Miscellaneous Provisions) Act 2020* (13/2020), enacted 6 August 2020, and all statutory instruments up to and including *European Union (Common Fisheries Policy) (Point System) Regulations 2020* (S.I. No. 318 of 2020), made 26 August 2020, were considered in the preparation of this revision.

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An Act to make further and better provision in relation to local government and, in particular, to amalgamate Limerick County Council with Limerick City Council, Waterford County Council with Waterford City Council and North Tipperary County Council with South Tipperary County Council, to provide for the position of chief executive in relation to each local authority, to dissolve town councils, to make provision for municipal districts, to assign additional reserved functions to local authority members, to dissolve County Development Boards and City Development Boards and make provision for the establishment of Local Community Development Committees, for planning and oversight of Local and Community Development Programmes, to provide for an increased role for local authorities in economic development and enterprise support, to amend the Local Government Act 1991 and provide for regional assemblies, to enable (subject to certain preconditions) a plebiscite to be held in the administrative areas of the local authorities in the Dublin area in respect of a directly elected mayor for that area and for those and other purposes to amend the Local Government Acts 1925 to 2013, the Local Elections Acts 1974 to 2012and other enactments relating to elections, the Housing Acts 1966 to 2013 and the Planning and Development Act 2000, to amend other Acts in connection with the foregoing matters, to amend section 20 of the Dublin Docklands Development Authority Act 1997 and to provide for related matters.
[27 *th January*, 2014]

Be it enacted by the Oireachtas as follows:

PART 1

Preliminary and General

Short title, collective citations, constructions and commencement

1. (1) This Act may be cited as the Local Government Reform Act 2014.

(2) This Act (other than *subsections (3)* to *(8)* of this section, *subsections (3)* to *(5)* of *section 5* and *Schedule 2*) shall be read together as one with the Local Government Acts 1925 to 2013 and may be cited together as the Local Government Acts 1925 to 2014.

(3) This subsection, *section 5*, the Valuation Acts 2001 and 2006 and so much of *Part 6* of *Schedule 2* as relates to the Valuation Act 2001 may be cited together as the Valuation Acts 2001 to 2014.

(i) the establishment of one or more than one committee under subsection (1) (a) of section 51 to consider matters connected with the functions of a local authority and the application, in so far as they relate to that subsection, of subsections (3)to (6) of that section,

(j) the making of regulations relating to committees of a local authority, but not including matters to which paragraphs (a) and (d) of section 54(1) relate,

(k) the making of a decision under section 64(3) in relation to the representation of the views of the local community,

(l) the making of arrangements under section 127(2) (f) for attendance and raising of issues by interested persons at meetings,

(m) determining under section 130 the policy of the elected council,

(n) the furnishing of information to the elected council of a local authority under section 136 of the Principal Act,

(o) the making of regulations under section 142 relating to members expenses and remuneration, other than paragraphs (b), (c) and (d) of subsection (1), and subsections (2) (b), (4) (i), (5) and (7), of that section,

(p) the payment of an allowance for reasonable expenses of a Cathaoirleach and Leas-Chathaoirleach of a local authority under section 143 of the Principal Act,

(q) attendance of chief executive at local authority meetings under section 152 of the Principal Act,

(r) provisions of Part 15 (ethical framework) of the Principal Act relating to beneficial interests, including disclosure by member of local authority of pecuniary or other beneficial interests under section 177 of that Act.

(2) *Subsection (1)* is without prejudice to *section 4*.

Chapter 2

Dissolution of Town Councils

Definitions (*Chapter 2*)

23. In this Chapter—

"dissolved body'' means a town council which is dissolved under *section 24(2)*;

"transfer date" has the meaning given in *section 24(1)*.

Dissolution of town councils and transfer date

24. (1) The Minister shall by order specify a date (in this Part referred to as the "transfer date") to be the transfer date for the purposes of this Part.

(2) On the transfer date each town council stands dissolved and ceases to exist and—

(a) the local authority for a county or a city and county in which a town whose town council is so dissolved is situated shall, for all purposes, become and be the successor to the town council on that date, and

(b) the area of a town whose town council is so dissolved shall, for the purposes of all functions of the local authority (whether under the *Local Government Acts 1925 to 2014* or otherwise) for the county or city and county in which

the town is situated, be included in and form part of that county or city and county.

Dissolution of town councils — consequential provisions

25. (1) (a) All acts done and decisions duly made, whether by resolution, manager's order or otherwise, before the transfer date in respect of a town council shall, subject to this Act, continue to have all such force and effect as they had immediately before that date.

(b) In this subsection "acts done or decisions duly made" include resolutions of the town council concerned and manager's orders of that authority.

(2) A function of a town council (including a reference construed by section 3(2) of, and Schedule 2 to, the Principal Act as a reference to a town council and whether of general application to town councils or otherwise under an enactment) that—

(a) has not been repealed or otherwise provided for by this Act, or

(b) is neither spent nor obsolete,

shall, if the context permits in respect of one or more than one town council concerned, be read as a reference to a function of the local authority in whose administrative area the town council so dissolved is situated.

(3) Without prejudice to *section 4*, the Minister may make regulations providing for any matter or thing which the Minister considers necessary to give effect to the dissolution of any one or more town councils.

(4) For the purposes of this Part but without prejudice to *section 5* and *Part 1* of *Schedule 1* (where relevant)—

(a) section 2(1) of the Principal Act is amended—

(i) in the definition of "administrative area" in the manner provided for in *Part 1* of *Schedule 1*, and

(ii) by deleting the interpretation given to "town council", as provided for in *Part 1* of *Schedule 1*,

(b) section 10 of the Principal Act is amended by deleting the reference to "town council" in the manner provided for by *section 12*,

(c) section 11 of the Principal Act is amended—

(i) by deleting subsection (4), and by deleting the reference to subsection (4) in subsection (7), in the manner provided for by *section 14*, and

(ii) by inserting subsection (16A) into that section in the manner provided for by *section 14*,

(d) Part 17 (sections 185 to 187) of the Principal Act is repealed as provided for in *Part 1* of *Schedule 1*, and

(e) Schedule 6 to the Principal Act is repealed as provided for in *Part 1* of *Schedule 1*.

PART 4

General Provisions Relating to Dissolutions, etc.